

26PSCV01356 26PSCV01356

County: los-angeles

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Case Number: 26PSCV01356 Hearing Date: June 29, 2026 Dept: G

Defendant

Ricardo A. Basurto's Motion to Set Aside Default Judgment

Respondent:

Plaintiff C&S DE Property Management LLC

TENTATIVE

RULING

Defendant

Ricardo A. Basurto's Motion to Set Aside Default Judgment is GRANTED.

Defendant

Ricardo A. Basurto is ordered to file separately an ANSWER in ten (10) days.

BACKGROUND

This

is an unlawful detainer action. On June 19, 2024, defendant Ricardo A. Basurto (Basurto) allegedly entered into a written lease for commercial property owned by plaintiff C&S DE Property Management LLC (C&S DE). On March 24, 2026, C&S DE allegedly posted a notice to pay rent or quit on the premises. On April 9, 2026, the period stated in the notice allegedly expired.

On

April 14, 2026, C&S DE filed the Complaint for unlawful detainer.

On

May 8, 2026, the court entered default against Basurto. On May 11, 2026, Basurto filed the Answer. On June 9, 2026, the court struck the Answer.

On

June 4, 2026, Basurto filed this motion to set aside entry of default (though internally labeled as a motion to set aside default judgment, the court interprets the motion as a motion to set aside entry of default because it argues that the entry of default is void, and there is no default judgment). On June 10, 2026, C&S DE filed the opposition, and there is no reply.

The

motion is set for hearing on June 29, 2026.

ANALYSIS

Basurto

moves to set aside the entry of default on the ground that it was premature and is thus void. For the following reasons, the court GRANTS the motion.

Legal

Standard

The

court may relieve a party from a voidable judgment or order if the application is made within a reasonable time, six months at the longest. (Code Civ. Proc., § 473, subd. (b), emphasis added.) “The court may . . . set aside any void judgment or order” at any time. (Code Civ. Proc., § 473, subd. (d), emphasis added.)

Discussion

As

a preliminary matter, Basurto failed to timely serve C&S DE with the motion. Unless otherwise ordered or specifically provided by law, all moving and supporting papers shall be served and filed at least 16 court days before the hearing. (Code Civ. Proc., § 1005, subd. (b).)

The notice period “shall be extended after service by electronic means by two court days.” (Code Civ. Proc., § 1010.6, subd. (a)(3)(B).) The court has broad discretion to decline to consider a late or unnoticed filing. (Cal. Rules of Court, rule 3.1300(d); see *Rancho Mirage Country Club Homeowners Assn. v. Hazelbaker* (2016) 2 Cal.App.5th 252, 262.) There is a judicial preference to consider matters on the merits even when filings are late. (*Kapitanski v. Von's Grocery Co., Inc.* (1983) 146 Cal.App.3d 29, 32.)

Basurto

attached a proof of service to the motion that states that he electronically served C&S DE. (See Mot., p. 25.) C&S DE contests proper service in the opposition. (See Opp., p. 3.) Nevertheless, C&S DE had the opportunity to oppose the motion on the merits. (See Opp., pp. 3–8.) Moreover, there is a judicial preference to consider the motion on the merits. (See *Kapitanski*, supra, 146 Cal.App.3d at 32.) Thus, in the interest of judicial efficiency, the court considers the petition on the merits. (Cal. Rules of Court, rule 3.1300(d); see *Rancho Mirage Country Club Homeowners Assn.*, supra, 2 Cal.App.5th at 262.)

Motion

to Set Aside

Basurto

argues that entry of default is void because C&S DE did not personally serve him, and the court lacked the jurisdiction to enter default against him. The court agrees.

The

court must determine whether C&S DE personally served Basurto. “The return of a [registered process server] . . . upon process . . . establishes a presumption, affecting the burden of producing evidence, of the facts stated in the return.” (Evid. Code, § 647.)

According

to the proof of service completed by the process server, C&S DE personally served Basurto on April 23, 2026 at the leased real commercial property. (See 5/8/2026 PoS, ¶¶ 4–5.) The process server also provides a photo he took of the person served. (See *Duong Decl.*, Exh. B.) C&S DE’s managing member also includes screenshots that purportedly show Basurto on the night the process server personally served him. (See *Zhao Decl.*, Exh. B.)

Basurto

claims, however, that C&S DE's process server did not personally serve him; he did not receive process until he found the documents in his office the next day. (See Mot., Basurto Decl., ¶¶ 2, 4.) Basurto's nephew claims that the process server gave him the documents intending to serve Basurto. (See Mot., Astorga Decl., ¶ 5.)

C&S

DE contends that Basurto's claim that the process server served his nephew is "not credible." (Opp., p. 2.) But even if the court finds that Basurto did not leave the premises before the process server arrived, C&S DE's photographic evidence suggests that the process server did not personally serve Basurto. In the process server's photo of the person served, the individual is wearing black pants and green and white Nike shoes. (See Duong Decl., Exh. B.) In the screenshots provided by C&S DE's managing member, Basurto appears to be wearing green pants and mostly white Adidas shoes. (See Zhao Decl., Exh. B.) The court is cognizant that Basurto may have changed clothes in the time between photos, C&S DE's evidence creates a factual disparity that rebuts the presumption established in the proof of service that the process server personally served Basurto. (See Evid. Code, § 647.) On this record, the court cannot conclude that C&S DE personally served Basurto.

Thus, the court did not have jurisdiction to enter default against Basurto, and resulting the entry of default was void.

Therefore, the court GRANTS the motion to set aside entry of default.

Responsive
Pleading by Defendant

As part of the motion to set aside default, Basurto attached a proposed answer to the unlawful detainer complaint. Basurto is ordered to file separately an ANSWER in ten (10) days.

CONCLUSION

For

these reasons, the motions to set aside judgment for lack of proper service of process is GRANTED.

Basurto

is ordered to file separately an ANSWER in ten (10) days.